

SECOND REGULAR SESSION

HOUSE BILL NO. 2217

103RD GENERAL ASSEMBLY

INTRODUCED BY REPRESENTATIVE RIGGS.

4091H.01I

JOSEPH ENGLER, Chief Clerk

AN ACT

To amend chapters 161 and 173, RSMo, by adding thereto two new sections relating to curriculum transparency.

Be it enacted by the General Assembly of the state of Missouri, as follows:

Section A. Chapters 161 and 173, RSMo, are amended by adding thereto two new sections, to be known as sections 161.852 and 173.925, to read as follows:

161.852. 1. This section and section 173.925 shall be known and may be cited as the "Charlie Kirk Viewpoint Diversity and Transparency Act".

2. The department of elementary and secondary education shall develop a tool within the department's comprehensive data system that provides access to the course syllabus and textbook information for each school district.

3. The tool shall consist of an easy-to-search database including, but not limited to, the following:

(1) All curricula taught by the school district;

(2) Information about each textbook used for each class, subject to the restrictions in subsection 7 of this section; and

(3) The course syllabus for each class.

4. The department of elementary and secondary education shall establish an online form that each school district in this state shall complete with information required under subsection 3 of this section.

5. A school district shall submit any updates to the information outlined in subsection 3 of this section every six months. A public school or school district may make good-faith modifications to curricula during each six-month period between

EXPLANATION — Matter enclosed in bold-faced brackets **[thus]** in the above bill is not enacted and is intended to be omitted from the law. Matter in **bold-face** type in the above bill is proposed language.

18 updates but shall not be required to submit an update of such modifications until the
19 next six-month update.

20 6. Not less than monthly, the department of elementary and secondary education
21 shall update the tool with the information required by this section to be submitted by
22 each school district and shall ensure that the tool is maintained as the primary
23 centralized source of information about the curriculum and instructional materials used
24 by public school districts.

25 7. (1) The information required under subdivision (2) of subsection 3 of this
26 section shall include at least the following for each item posted:

27 (a) Bibliographic information necessary to identify textbooks used for pupil
28 instruction. Such bibliographic information shall include at least the title, author,
29 organization, and a website associated with each textbook; and

30 (b) An internet link to any curriculum used by the public school.

31 (2) Each public school shall update the list posted under subdivision (1) of this
32 subsection each time the public school adopts a new or revised curriculum for pupil
33 instruction.

34 (3) This subsection shall not be construed to require a public school to:

35 (a) Digitally reproduce curricula or textbooks; or

36 (b) Post a curriculum or textbook in a manner that would constitute an
37 infringement of copyright under the federal Copyright Act of 1976 (17 U.S.C. Section
38 101 et seq.), as amended.

39 (4) This section shall apply in the 2026-27 school year and all subsequent school
40 years.

41 8. The department of elementary and secondary education may promulgate
42 rules to implement this section. Any rule or portion of a rule, as that term is defined in
43 section 536.010, that is created under the authority delegated in this section shall
44 become effective only if it complies with and is subject to all of the provisions of chapter
45 536 and, if applicable, section 536.028. This section and chapter 536 are nonseverable
46 and if any of the powers vested with the general assembly pursuant to chapter 536 to
47 review, to delay the effective date, or to disapprove and annul a rule are subsequently
48 held unconstitutional, then the grant of rulemaking authority and any rule proposed or
49 adopted after the effective date of this section shall be invalid and void.

173.925. 1. This section and section 161.852 shall be known and may be cited as
2 the "Charlie Kirk Viewpoint Diversity and Transparency Act".

3 2. As used in this section, the terms "approved institution of higher education",
4 "college textbook", "integrated textbook", "products", and "supplemental material"
5 shall have the same definitions as in section 173.955.

6 **3. Each approved institution of higher education shall:**

7 **(1) Submit to the department of higher education and workforce development**
8 **information about all college textbooks, integrated textbooks, products, and**
9 **supplemental materials used for each course of study offered by such institution,**
10 **subject to the requirements and restrictions in subsection 4 of this section; and**

11 **(2) Submit to the department of higher education and workforce development**
12 **information about each course of study offered by such institution, subject to the**
13 **requirements and restrictions in subsection 5 of this section.**

14 **4. (1) The information required under subdivision (1) of subsection 3 of this**
15 **section shall include at least the bibliographic information necessary to identify all**
16 **college textbooks, integrated textbooks, products, and supplemental materials used for**
17 **each course of study. Such bibliographic information shall include at least the title,**
18 **author, organization, and a website associated with each textbook.**

19 **(2) This subsection shall not be construed to require an approved institution of**
20 **higher education to:**

21 **(a) Digitally reproduce college textbooks, integrated textbooks, products, or**
22 **supplemental materials; or**

23 **(b) Post college textbooks, integrated textbooks, products, or supplemental**
24 **materials in a manner that would constitute an infringement of copyright under the**
25 **federal Copyright Act of 1976 (17 U.S.C. Section 101 et seq.), as amended.**

26 **5. (1) The information required under subdivision (2) of subsection 3 of this**
27 **section shall include at least a detailed course description of each course of study**
28 **offered.**

29 **(2) A detailed course description shall include:**

30 **(a) Required meeting times for such course, whether in-person or online;**

31 **(b) How long the course modules are open for coursework completion;**

32 **(c) A clear display of the course content and curriculum including, but not**
33 **limited to, any course themes, content, core concepts, online articles, journals, websites,**
34 **videos, or any other written or oral materials; and**

35 **(d) Any other information likely to provide a more detailed description of such**
36 **course in compliance with this section.**

37 **(3) This subsection shall not be construed to require an approved institution of**
38 **higher education to post course description information in a manner that would**
39 **constitute an infringement of copyright under the federal Copyright Act of 1976 (17**
40 **U.S.C. Section 101 et seq.), as amended.**

41 **6. The department of higher education and workforce development and the**
42 **coordinating board for higher education shall:**

43 (1) Develop an easy-to-search online database hosted by the department that
44 contains the information described in subsection 3 of this section for public access;

45 (2) Establish an online form that each faculty member of an approved institution
46 of higher education shall complete with information required under subsection 3 of this
47 section; and

48 (3) Update the information described in subsection 3 of this section every six
49 months. An institution may make good-faith modifications to such information during
50 each six-month period between updates but shall not be required to submit an update of
51 such modifications until the next six-month update.

52 7. This section shall apply in the 2026-27 academic year and all subsequent
53 academic years.

54 8. The coordinating board for higher education may promulgate rules to
55 implement this section. Any rule or portion of a rule, as that term is defined in section
56 536.010, that is created under the authority delegated in this section shall become
57 effective only if it complies with and is subject to all of the provisions of chapter 536 and,
58 if applicable, section 536.028. This section and chapter 536 are nonseverable and if any
59 of the powers vested with the general assembly pursuant to chapter 536 to review, to
60 delay the effective date, or to disapprove and annul a rule are subsequently held
61 unconstitutional, then the grant of rulemaking authority and any rule proposed or
62 adopted after the effective date of this section shall be invalid and void.

✓